

Guide to conciliations at the Residential Tenancies Dispute Service

What is the purpose of the service?

The service is a free alternative dispute resolution service to assist tenants and landlords in resolving residential tenancies disputes involving payment issues under a tenancy agreement. Tenancy agreement includes a site agreement, specialist disability accommodation (SDA) residency agreement, rent for a room and rent/hiring charge for a caravan or site.

The service is provided by the Dispute Settlement Centre of Victoria and is part of the Victorian Government's response to address the impacts of the coronavirus (COVID-19) pandemic.

Who can use the service?

Either tenants or landlords who are parties to a tenancy agreement can use the service.

A tenancy agreement may be written or oral, express or implied. Consumer Affairs Victoria (CAV) can help you understand whether you are a party to a tenancy agreement and can use the service.

What if my dispute arose before coronavirus (COVID-19)?

This does not prevent the service from accepting your dispute unless the dispute is already being considered by VCAT.

Can I go directly to VCAT?

No, during the coronavirus (COVID-19) response you must first seek advice and assistance from CAV to understand any issues and to attempt to resolve your dispute.

What if I still have a dispute after contacting CAV?

If your dispute is payment related, it will be referred to the Chief Dispute Resolution Officer.

'Payment related' means the dispute involves the rent payable (rent includes site fees and other hiring charges) and any requests for a rent reduction, together with any other issues, such as claims for compensation and compliance with a breach of a duty.

You will be assigned a Dispute Assessment Officer who will contact you to understand the dispute and assess whether it is suitable for conciliation. If your dispute is suitable for conciliation, the officer will schedule a conciliation.

What is conciliation?

Conciliation is a dispute resolution process, which will be held by teleconference with the parties to the tenancy agreement and is facilitated by a conciliator. The conciliator will be an experienced, nationally accredited mediator.

Why would my dispute not be suitable?

There are several reasons why a dispute may not be suitable for conciliation, including the behaviour of the parties or circumstances of the dispute.

A dispute may not be suitable if it does not involve a payment related issue or a proceeding has already commenced at VCAT regarding the rent payable.

How will I know if my dispute is not suitable?

You will receive a notice advising that your dispute is not suitable for conciliation and the service will close your case. The notice will entitle you to proceed to VCAT.

How will I know when the conciliation will be held?

If your dispute is accepted for conciliation, you will receive notification by email of the date, time, attendees and other important information.

What happens before the conciliation?

A Dispute Assessment Officer will:

- contact you to find out about the dispute;
- request any information that will assist at the conciliation; and
- ensure you are prepared and understand what to expect at the conciliation.

What is the conciliator's role?

Conciliators are independent and impartial. They do not provide legal or financial advice to the parties and are not an advocate for either party. They will not make any judgement about the dispute.

The conciliator will assist the parties to explore the issues in dispute, ask questions and provide the opportunity for each party to speak privately to the conciliator during the session.

Once an agreement is reached, the conciliator will record this in writing and a copy will be provided to both parties.

Parties unable to reach agreement at the conciliation will not be obliged to enter into an agreement.

Who will be at the conciliation?

Conciliation has the best chance of success when the parties come together directly and are guided by the conciliator.

If a party wishes to have a support person, advocate or legal representative present, this will be considered on a case-by-case basis. You should raise this with your Dispute Assessment Officer before the conciliation.

If you cannot attend the conciliation, you may authorise another person to represent you.

An interpreter will be provided to assist you, if required.

Will I be required to access my superannuation?

No. You cannot be forced to use your superannuation to pay rent. Conciliation requires that both parties agree on how to resolve the dispute.

Will I have to repay the amount by which the rent has been reduced?

No. You cannot be forced to resolve the dispute by agreeing to a reduction of rent that must later be repaid to the landlord. Conciliation requires that both parties agree on how to resolve the dispute.

Can an estate agent represent the landlord?

An estate agent can act on behalf of the landlord with appropriate authority.

The Dispute Assessment Officer may wish to speak to the landlord directly to obtain information and encourage them to attend the conciliation.

Can a tenant be represented by an advocate?

An advocate, such as a legal advisor or financial counsellor, can act on behalf of the tenant with appropriate authority. A support person may attend with the tenant.

Do I need to attend conciliation with my housemates?

Yes, conciliation requires all parties to the tenancy agreement to attend unless you have authorised someone else, such as a housemate, to participate in the conciliation and reach agreement on your behalf.

Is the conciliation confidential?

Yes, the conciliation is confidential, and information provided to the service will not be shared without your consent.

In addition, anything said in the conciliation cannot be later used in a VCAT proceeding if your matter does not resolve.

What happens when my dispute resolves at conciliation?

The conciliator will assist you to record the agreement in writing, including the agreed actions and timeframes. For example, any reduced rent payable and the period to which the negotiated reduced rent applies. You will be sent a copy of the agreement by email.

Are the agreements binding?

Agreements reached at conciliation can have the effect of amending the tenancy agreement. The agreements are made in good faith and are binding on the parties.

What happens if my dispute doesn't resolve at conciliation?

The Chief Dispute Resolution Officer may issue a binding dispute resolution order or a notice confirming the dispute has not been resolved by conciliation.

What is a dispute resolution order?

There are two types of dispute resolutions orders:

1. Binding orders made by the Chief Dispute Resolution Officer to the parties with an unresolved dispute.
2. Consent orders agreed to by the parties where they wish to formalise their agreement.

A dispute resolution order could be an order reducing the rent payable, a payment plan to pay rent or to pay any outstanding arrears of rent.



The circumstances of the parties will be considered before any dispute resolution order is issued to ensure that it is fair and reasonable.

What happens if the agreement is not complied with?

You should contact your Dispute Assessment Officer who will contact the other party. It may be that the agreement can be amended, or the timeframes extended.

If this is not appropriate, a notice will be issued to the parties and the agreement will end.

The Chief Dispute Resolution Officer will then decide whether to issue a dispute resolution order or to allow the parties to proceed to VCAT.

How can I take my dispute to VCAT?

If your dispute does not resolve at conciliation or the agreement is not complied with, and it is not appropriate to issue a dispute resolution order, you will receive a Notice of decision (dispute not resolved).

The Notice of decision (dispute not resolved) will enable you to make an application to VCAT.

Privacy

The dispute service is committed to responsible and fair handling of your personal information, consistent with the Information Privacy Principles in the *Privacy and Data Protection Act 2014* (Vic).

You can view the Dispute Settlement Centre of Victoria's [privacy policy](#).